



CHAPTER xxvii.

An Act to confirm a Provisional Order under the A.D. 1924.
Private Legislation Procedure (Scotland) Act
1899 relating to Burntisland Water.
[14th July 1924.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63
Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Burntisland Water Order Confirmation Act 1924. Short title.

A.D. 1924.

S C H E D U L E.

BURNTISLAND WATER.

Provisional Order to authorise the provost magistrates and councillors of the Royal Burgh of Burntisland to construct additional waterworks to borrow money and for other purposes.

WHEREAS the provost magistrates and councillors of the royal burgh of Burntisland in the county of Fife (hereinafter called "the Corporation" and "the burgh" respectively) are the local and sanitary authority within the burgh under the Burgh Police (Scotland) Acts 1892 to 1911 and the Public Health (Scotland) Acts 1897 to 1907:

And whereas certain waterworks were constructed by the Corporation as such and as commissioners of police:

And whereas by the Burntisland Burgh Act 1876 (hereinafter called "the Act of 1876") the then existing waterworks were vested in the Corporation and the Corporation were authorised to construct certain additional waterworks therein described:

And whereas owing to the increase of population and the industrial development of the burgh it is expedient that an additional supply of water should be provided and that the Corporation should be authorised to introduce such additional supply and for that purpose to construct and maintain the works hereinafter described:

And whereas it is expedient that the limits of compulsory supply should be extended as hereinafter described:

And whereas the aggregate moneys authorised to be borrowed by the Act of 1876 in connection with and for the purposes of the water undertaking of the Corporation amounted to the sum of twenty-five thousand pounds which amount has been borrowed to the extent

of twenty thousand pounds and in addition the Corporation have borrowed for the general purposes of their water undertaking the sum of twelve thousand two hundred and ninety-two pounds thirteen shillings and twopence : A.D. 1924.

And whereas the amount now outstanding on the said loan of twenty thousand pounds is three thousand seven hundred and nine pounds fourteen shillings and eightpence and the amount now outstanding in respect of the said loan of twelve thousand two hundred and ninety-two pounds thirteen shillings and twopence is four thousand six hundred and nineteen pounds and ten shillings :

And whereas it is expedient that the Corporation should be authorised to borrow additional money for the purpose of the works by this Order authorised and for the general purposes of their water undertaking :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this Order authorised to borrow money and such estimates are as follows :—

	£
Purchase of lands and servitudes -	2,000
Construction of reservoirs and embankments - - - - -	12,500
Construction of conduits - - - - -	5,300
Subsidiary works - - - - -	1,000
	£20,800

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is expedient that the further powers and provisions hereinafter in this Order contained should be conferred on the Corporation and made as by this Order is provided :

And whereas plans and sections showing the lines situation and levels of the several works authorised by this Order and the lands proposed to be taken for the

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A.D. 1924. — purposes thereof and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands houses and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Fife at his offices in Cupar Dunfermline and Kirkcaldy and are hereinafter referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

Short title
and
citation of
Acts.

1. This Order may be cited for all purposes as the Burntisland Water Order 1924.

The Burntisland Burgh Act 1876 so far as it relates to water and water purposes and this Order may be cited as the Burntisland Water Acts 1876 and 1924.

Commence-
ment of
Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter in this Order referred to as "the commencement of this Order."

Division of
Order into
Parts.

3. This Order is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Works.
- Part III.—Lands.
- Part IV.—Financial.
- Part V.—Miscellaneous.

PART I.

PRELIMINARY.

Incorporation of
Acts.

4. The Lands Clauses Acts are so far as the same are applicable and are not varied by or inconsistent with the provisions of this Order incorporated with and form part of this Order This Order shall be deemed to be a special Act within the meaning of those Acts.

The Waterworks Clauses Act 1847 (except the provisions with respect to the communication pipes to be laid by the undertakers and with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and also with the exception of clauses 68 70 71 72 and 88 thereof) and the Waterworks Clauses Act 1863 and the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to the crossing of roads or other interference therewith are (except where expressly varied by this Order) incorporated with and form part of Part II. of this Order and for the purposes of this Order such provisions shall have effect as if the works by this Order authorised were referred to in lieu of "the railway" and as if the boundaries of the reservoirs and the centres of the embankments drains conduits and roads respectively were referred to in lieu of "the centre of the railway" and the prescribed limits shall be two hundred yards. A.D. 1924.

5. In this Order terms words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order shall subject to the provisions of this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that in the Acts wholly or partially incorporated with this Order the following words and expressions have for the purposes of this Order the meanings hereby assigned to them (that is to say):— Interpre-
tation.

"The promoters of the undertaking" "the undertakers" and "the company" respectively mean the Corporation:

Further in this Order the following words and expressions shall have the several meanings by this section assigned to them unless there be something in the subject or context inconsistent with or repugnant to such construction (that is to say):—

"Burgh" means the burgh of Burntisland;

"Corporation" means the provost magistrates and councillors of the burgh;

"Sheriff" means the sheriff of the county of Fife and includes his substitutes;

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- “ Sheriff clerk ” means the sheriff clerk of the county of Fife ;
“ The Act of 1876 ” means the Burntisland Burgh Act 1876 ;
“ The water undertaking ” means the undertaking of the Corporation under and authorised by the Act of 1876 and this Order .

PART II.

WORKS.

Power to
construct
additional
water-
works.

6. Subject to the provisions of this Order the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described with all proper embankments filter beds dams sluices cuts channels pipes wells tanks engines buildings machinery and other works and conveniences connected therewith or incidental thereto The works hereinbefore referred to and authorised by this Order are :—

(1) A reservoir (Work No. 1) situate partly in the parish of Aberdour and partly in the parish of Burntisland both in the county of Fife commencing on the Dour Burn in the parish of Burntisland at a point fifty yards or thereby measured in a south-easterly direction from the westmost corner of enclosure or field numbered 87 on the Ordnance survey map (edition of 1914) and terminating at the embankment (Work No. 2) hereinafter described ;

(2) An embankment (Work No. 2) situate partly in the parish of Aberdour and partly in the parish of Burntisland both in the county of Fife commencing in the parish of Aberdour in enclosure or field numbered 119 on the Ordnance survey map (edition of 1914) at a point ninety-eight yards or thereby measured in a south-westerly direction from the southmost corner of enclosure or field numbered 32 and terminating in the parish of Burntisland in enclosure or field numbered 31 at a point one hundred and eighty yards or thereby measured in a south-easterly direction from the southmost corner of aforesaid enclosure or field numbered 32 ;

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- (3) A catchwater drain or conduit (Work No. 3) situate in the parish of Burntisland and county of Fife commencing in enclosure or field numbered 82 on the Ordnance survey map (edition of 1914) at a point eighty yards or thereby measured in a north-easterly direction from the southmost corner of said enclosure or field and terminating in the aforesaid reservoir (Work No. 1) at a point one hundred and forty yards or thereby measured in a south-easterly direction from the point hereinbefore described as the termination of Work No. 2;
- (4) A catchwater drain or conduit (Work No. 4) situate in the parish of Aberdour and county of Fife commencing on the western slope of Montquey Hill in enclosure or field numbered 124 on the Ordnance survey map (edition of 1914) at a point two hundred and seventy-three yards or thereby measured in a westerly direction from the southmost corner of enclosure or field numbered 123 and terminating in the aforesaid reservoir (Work No. 1) at a point thirty-three yards or thereby measured in a southerly direction from the point hereinbefore described as the commencement of Work No. 2;
- (5) A road of access (Work No. 5) situate in the parish of Aberdour and county of Fife commencing in the Old North Road at a point nineteen yards or thereby measured in a southerly direction from the southmost corner of enclosure or field numbered 117 on the Ordnance survey map (edition of 1914) and terminating at the point hereinbefore described as the commencement of Work No. 2;
- (6) A conduit or line of pipes (Work No. 6) situate partly in the parish of Aberdour and partly in the parish of Burntisland both in the county of Fife commencing in the parish of Burntisland in the reservoir (Work No. 1) at a point one hundred and six yards or thereby measured in an easterly direction from the point hereinbefore described as the commencement of Work No. 2 and terminating in the parish of Aberdour at a point on the Dour Burn two hundred and

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forty yards or thereby measured in a north-easterly direction from the point where the central line of the public highway between Burntisland and Kinross crosses the said Dour Burn;

- (7) A reservoir (Work No. 7) situate in the parish of Aberdour and county of Fife being an enlargement of the north bay of the existing Cullaloe Reservoir commencing in enclosure or field numbered 96 on the Ordnance survey map (edition of 1914) at a point one hundred and twenty yards or thereby measured in a westerly direction from the northmost corner of enclosure or field numbered 100 and terminating at the embankment (Work No. 9) hereinafter described;
- (8) A reservoir (Work No. 8) situate in the parish of Aberdour and county of Fife being an enlargement of the south bay of the existing Cullaloe Reservoir commencing on the Dour Burn at a point five hundred and sixty-two yards or thereby measured in a south-westerly direction from the point where the central line of the public highway between Burntisland and Kinross crosses the said Dour Burn and terminating at the embankment (Work No. 9) hereinafter described;
- (9) An embankment (Work No. 9) including heightenings and lengthenings of the existing embankments of Cullaloe Reservoir situate in the parish of Aberdour and county of Fife commencing at a point thirteen yards or thereby measured in a south-easterly direction from the centre of the waste-weir of the said reservoir and terminating in enclosure or field numbered 98 on the Ordnance survey map (edition of 1914) at a point two hundred and thirty-three yards or thereby measured in an easterly direction from the centre of the sill or weir on the existing subsidiary embankment between the north bay and the south bay of the said reservoir;
- (10) An intercepting drain (Work No. 11) situate in the parish of Aberdour and county of Fife commencing in enclosure or field numbered 105 on the Ordnance survey map (edition of 1914) at the sluice at a point ten yards or thereby

measured in a northerly direction from the northmost corner of enclosure or field numbered 128 and terminating in the north bay of Cullaloe Reservoir at a point one hundred and fifty-four yards or thereby measured in a south-westerly direction from the northmost corner of enclosure or field numbered 98 :

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All which works and the lands and property to be taken for the purposes thereof are or will be situate in the parishes of Aberdour and Burntisland in the county of Fife. Provided that any electric works made or maintained by the Corporation under this section shall be so constructed maintained and used as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of such line.

7. In making the said works the Corporation may deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown thereon and vertically from the levels thereof shown on the deposited sections to any extent not exceeding in any one place as regards reservoirs three feet and in other respects ten feet. Provided nevertheless that in connection with Works Nos. 7 8 and 9 any vertical deviation shall not exceed eighteen inches. Provided always that in constructing the embankments of the reservoirs authorised by this Order the Corporation shall not deviate vertically upwards to a greater height above the surface of the ground than three feet more than the height shown on the deposited sections with reference to the corresponding embankments delineated thereon.

Lateral and vertical deviation.

8. The Corporation may maintain the existing waterworks and may on any lands or property belonging to them or that may be acquired by them for the purpose from time to time renew the same and enlarge and extend the same (other than reservoirs) and add to the mains pipes works apparatus and conveniences of the existing waterworks when and as they find it necessary or expedient so to do.

Power to maintain and extend existing water-works.

9. For the purposes and during the execution of the several works which the Corporation are by this Order authorised to make and in maintaining the same and

Power to alter roads &c. temporarily.

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A.D. 1924. — subject to the provisions of this Order the Corporation may temporarily from time to time break up or cross over or under alter or stop up any highways roads lanes footways footpaths bridges drains watercourses water pipes and electric or telephonic apparatus on any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such highway road lane footway footpath or bridge or the flow of water sewage or electricity or telephonic communication in any such drain watercourse pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to or authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with the provisions of that section.

Power to
take water.

10. Subject to the provisions of this Order the Corporation may in addition to the waters they are already authorised to use intercept collect divert and take into the reservoirs above described and impound and store up therein and use and appropriate for the purposes of this Order the waters of the said streams called Dour Burn and Lady's Burn and the springs feeders tributaries and affluents thereof and therein and such springs and streams and waters as may be intercepted by the works by this Order authorised.

For protec-
tion of
conduits
&c. from
pollution.

11. Subject to the provisions of this Order the Corporation may on any lands which they may acquire under the powers of this Order or otherwise construct all such drains channels and other works as they think necessary or desirable for preventing sewage or polluting liquids from entering or polluting conduits watercourses or waterworks of the Corporation or any waters flowing into the same.

Temporary
discharge
of water

12. For the purpose of executing any necessary work of repair or of cleansing or of examining any of the works

by this Order authorised or any reservoir tank aqueduct or conduit belonging to the Corporation the Corporation may cause the water in any such works to be temporarily discharged into any available stream or watercourse In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by an arbiter to be appointed failing agreement by the sheriff on the application of either party.

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into
streams.

13. Whereas the water which can be intercepted collected or diverted by means of the works by this Order authorised already flows into the existing Cullaloe Reservoir and will continue so to flow therefore the existing provisions relating to the compensation water to be delivered therefrom shall continue to have effect.

Compensa-
tion water.

14. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or some other Order confirmed by or having the effect of an Act of Parliament or in some Act of Parliament.

Limiting
powers of
Corporation
to abstract
water.

15. The additional waterworks shall be completed within seven years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for making the said waterworks or otherwise in relation thereto shall cease to be exercised except as to so much thereof as shall then be completed.

Period for
completion
of works.

16. The works by this Order authorised shall form part of the water undertaking of the Corporation and all the powers and provisions vested in and applicable to the Corporation with reference to their water undertaking shall be and the same are hereby in so far as applicable and not inconsistent with the provisions of this Order extended and applied to the waterworks by this Order authorised.

Works to
form part
of water
under-
taking.

17. In the execution of the works and the exercise of the powers by this Order authorised and conferred so far

For pro-
tection of

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A.D. 1924. as they affect highways in the county of Fife the following provisions for the protection of the Dunfermline district committee and the Kirkcaldy district committee of the county council of the county of Fife (hereinafter in this section called "the district committees") shall (except so far as otherwise agreed to in writing between the Corporation and the district committees) have effect (that is to say):—

Dun-fermline and Kirkcaldy district committees of county of Fife.

(1) Nothing in this Order contained shall interfere with the right of the district committees to alter the level of or divert or improve in any manner they think fit any county highway in or along which any aqueduct conduit or line of pipes of the Corporation shall have been laid and the Corporation shall forthwith on receiving notice in writing under the hand of the clerk or surveyor of the district committees alter the position of any such aqueduct conduit or line of pipes in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner hereinafter prescribed;

(2) The district committees shall not be liable for or in respect of any damage or injury done to any work of the Corporation by reason of such work being laid at a depth below the surface of any highway insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction engine for the repair of such county highway or from the passage of the traffic in such highway or in repairing any county bridge or the approaches thereto or culvert;

(3) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 the Corporation shall be deemed to be the person by whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connection with the execution of the works by this Order authorised. The Corporation shall make payment to the district committees for and in respect of the carriage or haulage over any highway situate within the district of the district committees of materials

plant or apparatus to be used by the Corporation in the construction or maintenance of the works by this Order authorised or in the reconstruction thereof of threepence per ton for each mile for and in respect of such materials plant or apparatus so carried or hauled by traction engine or other mechanical haulage and of twopence per ton for each mile for and in respect of such materials plant or apparatus so carried or hauled in carts or waggons propelled or drawn other than by mechanical power and the Corporation shall require their contractor and such contractor shall at the end of each month supply to the road surveyor of the district committees a detailed statement of the materials plant or apparatus so carried or hauled over such highways together with the railway weigh bills or other evidence of such quantities; .A.D. 1924.

- (4) If any difference arises between the district committees and the Corporation touching this section or anything to be done or not to be done thereunder such difference shall failing agreement be referred to the decision of an arbiter to be named (failing agreement of the parties to name an arbiter) by the sheriff on the application of either party and the decision of such arbiter shall be final.

PART III.

LANDS.

18. Subject to the provisions of this Order the Corporation may enter upon and take and use such of the lands shown upon the deposited plans and described in the deposited book of reference as they require for the purposes of the construction and maintenance of the works by this Order authorised. Power to take lands.

19.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Corporation may acquire servitudes only in certain cases.

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A.D. 1924. Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired servitudes only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if this Order had not been confirmed.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

Power to
take
servitudes
&c. by
agreement.

20. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any easement servitude right or privilege (not being a servitude easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuities so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements servitudes rights and privileges as aforesaid respectively.

Lands for
extra-
ordinary
purposes.

21. In addition to the lands to be taken by the Corporation under the powers of this Order the Corporation may by agreement purchase for extraordinary purposes in connection with their water undertaking any quantity of land not exceeding ten acres.

Period for
compulsory
purchase
of lands.

22. The powers of the Corporation for the compulsory purchase of lands and property required for or in connection with the works authorised by this Order shall cease after the expiration of three years from the commencement of this Order.

23. And whereas in the construction of the works authorised by this Order or otherwise in exercise of the powers of this Order it may happen that portions only of the lands and properties shown on the deposited plans and numbered thereon 1 to 21 both inclusive in the parish of Burntisland and 1 to 7 both inclusive and 9 14 15 and 17 to 31 both inclusive in the parish of Aberdour may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the said lands and properties and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the official arbiter or other authority to be appointed under the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Corporation the portions only of the said properties so required without the Corporation being obliged or compellable to purchase the whole or any greater portion thereof the Corporation paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested by severance or otherwise.

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—
Owners
may be
required
to sell parts
only of
certain
lands and
buildings.

PART IV.
FINANCIAL.

24.—(1) The Corporation may from time to time under the authority of this Order (in addition to any money which they have borrowed or are otherwise authorised to borrow) borrow on the security of the several water rates and charges by the Act of 1876 and this Order authorised for the several purposes of this Order sums not exceeding the amounts hereinafter mentioned for the respective purposes following (that is to say) :—

Power to
borrow.

- (a) In respect of the purchase of lands and servitudes by this Order authorised - - - - - £ 2,000
- (b) In respect of the construction of the reservoirs by this Order authorised 12,500

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- | | | |
|-----|--|---------|
| (c) | In respect of the construction of the conduits and drains by this Order authorised and subsidiary works | £ 6,300 |
| (d) | For the general purposes of the water undertaking | 9,000 |
| (e) | In respect of the costs charges and expenses of and incidental to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto such sum as may be necessary. | |
| (f) | With the sanction of the Secretary for Scotland but not otherwise such further sums as may be requisite for the general purposes of the water undertaking. | |

(2) If after having borrowed the sums of money by this section authorised or any part thereof the Corporation pay off the same or any part thereof otherwise than by means of instalments or the sinking fund hereinafter mentioned it shall be lawful for them again to borrow the amount so paid off and so from time to time Provided that all moneys so reborrowed shall for the purposes of repayment be deemed part of the original loan and shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such reborrowing has been made.

Powers of Secretary for Scotland in relation to borrowing.

25. In relation to any sanction to be given by the Secretary for Scotland to the borrowing of money by the Corporation under this Order the Secretary for Scotland shall have and may exercise all the powers of section 93 of the Local Government (Scotland) Act 1889.

Application of sections of Act of 1876 to borrowing powers.

26. The following sections of the Act of 1876 shall be and are hereby made applicable to all moneys borrowed or raised by the Corporation under the powers of this Order in the same manner as if they had been borrowed or raised under the powers of Part IV. (Borrowing powers) of the Act of 1876 that is to say:—

Section 82 (Form of mortgage) and the second and fourth schedules to the Act therein referred to;

Section 83 (Mortgages may be accompanied with interest warrants) and the third schedule to the Act therein referred to;

Section 84 (Corporation may borrow on credit of a cash account); A.D. 1924.

Section 87 (Protection of lender from inquiry);

Section 90 (Arrears may be enforced by appointment of judicial factor);

Section 91 (Powers and duties of judicial factor);

Section 92 (Mortgages to be personal estate);

Section 93 (Discharge of mortgages).

27.—(a) The Corporation shall pay off all moneys to be borrowed by them under this Order (other than moneys to be borrowed with the sanction of the Secretary for Scotland) within the respective periods following (which periods shall severally be deemed to be “the prescribed period” referred to in the section of this Order of which the marginal note is “Sinking fund”) that is to say:—

Periods for
repayment
of borrowed
money.

(1) As to money borrowed in respect of the purchase of lands and servitudes by this Order authorised within sixty years from the date or dates of the borrowing of the same;

(2) As to money borrowed for the construction of the reservoirs by this Order authorised within fifty years from the date or dates of the borrowing of the same;

(3) As to money borrowed for the construction of the conduits drains and subsidiary works by this Order authorised within forty years from the date or dates of the borrowing of the same;

(4) As to money borrowed under the authority of this Order for general purposes within thirty years from the date or dates of the borrowing of the same;

(5) As to money borrowed for paying the costs charges and expenses of preparing and applying for and the issue and confirmation of this Order within five years from the commencement of this Order.

(b) Any moneys borrowed for the general purposes of the water undertaking with the sanction of the Secretary for Scotland shall be repaid within such period and by such method as the Secretary for Scotland may notwithstanding anything in the Burgh Police Acts contained prescribe.

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Mode of
repayment
of borrowed
money.

28. The Corporation shall pay off all moneys borrowed by them (other than money borrowed for current expenses) under this Order either by means of a sinking fund formed under the provisions of this Order or by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them.

Sinking
fund.

29.—(a) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed and maintained either—

- (1) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (2) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding four per centum per annum or such other rate as the Secretary for Scotland may from time to time allow will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(b) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Corporation or be deposited in bank the Corporation being at liberty from time to time to vary and transpose such investments.

(c) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

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(d) The Corporation may at any time apply the whole or any part of the sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(e) (i) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(ii) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(f) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

(g) If it appears to the Secretary for Scotland or to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(h) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(i) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon

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A.D. 1924. (in the case of an accumulating sinking fund) will in the opinion of the Corporation be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(j) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Corporation be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(k) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation may determine.

Application
of money
raised and
borrowed.

30. The several sums raised and borrowed by the Corporation on mortgage or on cash credit or cash account under the authority of this Order shall be applied only for the purposes for which they are authorised to be borrowed and the general purposes of the water undertaking to which capital is properly applicable and to no other purpose whatsoever. Provided that with the exception of the cost of enlarging or increasing the number of mains or pipes and of extending the works mains and pipes the several sums borrowed or raised by the Corporation under the authority of this Order relating to the water undertaking shall not be applied to any of the purposes to which the rates and charges by the Act of 1876 and this Order authorised to be levied by them are by this Order specially made applicable.

Saving for
existing
mortgages.

31. Nothing in this Order contained shall prejudicially affect any mortgage or other document or acknowledgment of debt heretofore granted by the Corporation or the police commissioners on the credit of any rate fund income or property which the Corporation or the police commissioners as the case may be before the commencement of this Order had power to

levy or over which they had control and now in force and all mortgages or other documents or acknowledgments of debt so granted and now in force shall have in all respects the same priorities and be secured in full to all intents and purposes upon such rate fund income or property of the Corporation or the police commissioners as if this Order had not been confirmed. A.D. 1924.
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32. In estimating and fixing once in every year the amount of money necessary to be levied for the purposes mentioned in section 55 (Corporation to estimate annual amounts required) of the Act of 1876 the Corporation shall include the interest on the money that may be borrowed by them under the authority of this Order relating to the water undertaking and the moneys by this Order provided to be set apart as instalments or as a sinking fund in respect thereof and the rates by the Act of 1876 and this Order authorised in respect of the water undertaking shall respectively be assessed and levied to such an amount as will be sufficient to meet the same in addition to the purposes mentioned in the said section of the Act of 1876 and the amount so levied shall be applied in payment thereof. Annual estimates to include interest on money borrowed &c.

33. Section 95 (Application of revenue) of the Act of 1876 is hereby repealed and subject to the provisions of the Act of 1876 and this Order the Corporation shall apply all moneys from time to time received by them under the powers of the Act of 1876 with reference to water purposes or this Order (not being money raised by borrowing for the application of which provision is otherwise made) in the manner and order following and not otherwise (that is to say) :— Application of water revenue.

(Firstly) In payment of the expenses of managing and maintaining the water undertaking including therein all expenses of and incidental to the raising levying and recovering of rates rents charges and revenues and the borrowing of moneys and also in payment of any feu duties ground annuals or other charges exigible in respect of any lands or property forming part of the water undertaking;

(Secondly) In payment of interest on money borrowed under the authority of—

(a) The Act of 1876; and

(b) This Order;

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(Thirdly) In setting apart the instalments or sinking fund for paying off the money borrowed under the authority of the Act of 1876 and this Order;

(Fourthly) In carrying the other powers and provisions of the Act of 1876 relating to the water undertaking (so far as not repealed or altered) and this Order into execution including any extensions of the Corporation waterworks;

(Lastly) The surplus if any from time to time shall be so applied as to facilitate the reduction of the domestic water rate when circumstances shall permit the same to be done.

PART V.

MISCELLANEOUS.

Extension
of compul-
sory limits
of supply.

34. The limits of compulsory supply specified in the Act of 1876 are hereby further extended and shall comprise and include the following additional areas in the parish of Burntisland in the county of Fife namely:—

- (1) The area of ground lying to the north-east of the parliamentary burgh of Burntisland as existing on the first day of April one thousand nine hundred and thirteen and bounded as follows On the west or north-west by a line beginning at a point on the north margin of the Kirkcaldy and Burntisland North Road where the said parliamentary burgh boundary crosses the said margin and running the said line in a north-easterly direction along the north margin of the said road for a distance of nine hundred and twenty feet or thereby on the north or north-east by a straight line drawn from the north termination of the said west boundary in a south-easterly direction to the north-eastern corner of the Burntisland Cemetery on the east by a straight line drawn in a southerly direction along the eastern boundary of the said cemetery and continued until it meets the said parliamentary burgh boundary on the seashore and on the south or south-east by the said parliamentary burgh boundary;

- (2) The area of ground lying at the north side of the Kirkton of Burntisland bounded as follows A.D. 1924.
On the west or south-west by a line beginning at a point on the boundary of the parliamentary burgh of Burntisland as existing on the first day of April one thousand nine hundred and thirteen one hundred and eighty feet or thereby west from the centre of Grange Road where the said parliamentary burgh boundary crosses the said road and running the said line in a north-westerly direction for a distance of six hundred and thirty feet or thereby nearly parallel with the said Grange Road and at a distance of one hundred and thirty feet or thereby from the west side of the said road on the north or north-west by a line running in a north-easterly direction from the north termination of the said west or south-west boundary and at right angles to the said Grange Road and crossing the said road until it reaches a point one hundred feet or thereby eastwards from the east side of the said road on the east by a line running from the said last-mentioned point in a south-easterly direction nearly parallel with the said Grange Road until it meets the north margin of the Dollar Road thence in an easterly direction along the north margin of the said Dollar Road for a distance of three hundred and sixty feet or thereby and thence by a line running in a southerly direction across the said Dollar Road and along the east side of the wall enclosing the glebe lands and the old graveyard until it meets the said parliamentary burgh boundary and on the south by the said parliamentary burgh boundary :

And the provisions of the Act of 1876 and this Order shall apply to the said extended limits as fully and effectually as they apply to the limits of compulsory supply specified in the Act of 1876 So much of the said area as has hitherto been included in the limits of supply of the Kirkcaldy District Committee as described in section 52 of the Kirkcaldy District Water Order 1913 is hereby disjoined therefrom.

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Tube or
hose not to
be affixed
to mains or
pipes
without
consent of
Corpora-
tion.

35. It shall not be lawful for the owner or occupier of any house or premises supplied with water by the Corporation without their written consent to affix or permit or suffer to be affixed any tube or hose to any of the mains or pipes of the Corporation or to any service pipe or apparatus of such owner or occupier for the purpose of washing horses carriages or other vehicles houses or buildings or for watering gardens or washing pavements or roads or for any other purpose and any person who contravenes this enactment shall be guilty of an offence and shall for every such offence forfeit and pay to the Corporation a penalty not exceeding forty shillings. Such penalty shall be recoverable as if the same were a penalty under section 107 (As to recovery of fines) of the Act of 1876.

Costs of
Order.

36. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Corporation out of the revenue of the water undertaking or out of moneys to be borrowed or raised under the authority of the Act of 1876 or this Order. Provided that if such costs charges and expenses are paid out of moneys so borrowed or raised the amount thereof shall be repaid out of such revenues within five years from the commencement of this Order.

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